

2025:PHHC:000588



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

(214)

**CRM-M-49811-2024
Decided on : 07.01.2025**

Sukha Singh

.....Petitioner(s)

Versus

State of Punjab

.....Respondent(s)

CORAM : HON'BLE MRS.JUSTICE MANJARI NEHRU KAUL

Present: Mr.B.S.Bhalla, Advocate for the petitioner (s).

Mr.Navdeep Singh, DAG, Punjab
Assisted by SI-Lakhwinder Singh.

MANJARI NEHRU KAUL, J. (Oral)

1. Prayer in the instant petition is for grant of anticipatory bail to the petitioner under Section 482 of the Bhartiya Nagarik Suraksha Sanhita, 2023 (BNSS) in case FIR No.149 dated 26.07.2024 under Sections 21-B, 22, 29 of the NDPS Act, 1985 registered at Police Station Ajnala, District Amritsar Rural.

2. On the last date of hearing i.e. on 03.10.2024, while noticing the following submissions made by the learned counsel for the petitioner, this Court had granted the concession of interim bail to the petitioner and asked him to join investigation:-

“Learned counsel for the petitioner, inter alia, contends that the petitioner, who has no previous criminal antecedents, has been arraigned as an accused in the present case on the basis of a disclosure statement allegedly suffered by co-accused Jagga Singh and Bugga Singh, from whom 150 grams of heroin and 920 intoxicant tablets were recovered. Learned counsel asserts that the disclosure statement on the basis of which he has been nominated in the present case does not have much evidentiary value and clearly points to his false implication more so when he has never been booked in any case under the NDPS Act.”

3. Learned State counsel, on instructions from SI Lakhwinder Singh, does not dispute the factum of the petitioner having joined investigation and cooperated with the investigating agency. It has also not been disputed that the petitioner has not been attributed any specific role much less injury in the occurrence in question. He, on further instructions, submits that the petitioner is not required for further investigation much less for his custodial interrogation.

4. In view of the above, the petition is allowed and interim order dated 03.10.2024, is made absolute subject to the conditions laid down in Section 438(2) Cr.P.C./482(2) of BNSS, 2023.

(MANJARI NEHRU KAUL)
JUDGE

January 7, 2025
Sailesh

Whether speaking/reasoned :	Yes
Whether Reportable :	No